

 Internal Case Management System Worksheet - Case Closing					Top Allegation USE OF FORCE - LEVEL 2	Group G54-GROUP 54 - FORCE Date of This Report 09/12/2022	
Date Reported 05/31/2020	Date Assigned 05/31/2020	IAB Log No. 2020-13824	Case No. (G54) FI-2020-416	Folder Type FORCE INVESTIGATION	Preliminary Case Type FORCE INVESTIGATION	Follow-Up No.	Worksheet Tracking No. 5785394

Topic/Subject (Case Closing) CASE CLOSING - PARTIALLY SUBSTANTIATED	Activity Date 09/12/2022	Activity Time 13:20
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Referred to Group -	Conferred With	Next Review Date
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Closing Statement

Case#:
FI-2020-0416
(PW Case# 2020-4 was established on 06/03/20. The case was assigned to Sgt. Chow, Group# 42 and closed on 06/21/21 as Information and Intelligence)

Log#s:
2020-13824
2020-17490
2021-25531

Date of Occurrence:
May 30, 2020

Date Case Received:
June 3, 2020

Administrative Statute of Limitations Expires:
May 6, 2022

Classification:
C1

Investigator:
DT2 Christopher Retos, Tax# 935579

Team Leader:
Lt. Charles Burke, Tax# 936263

Overall Case Disposition:
Partially Substantiated

Subject Officer# 1:
PO Michael Sher, 62nd Precinct, formerly assigned to the 70th Precinct
Date of Appointment: 07/06/2011
Probation (at the time of incident): No
Current Duty Status: Full Duty (as of 09/07/22)
CPR: Level 3 Dismissal Probation as of 07/14/22, as a result of this investigation.
IAPRO disclosed 3 incidents on file with no similar allegations.
ICMS disclosed 48 other incidents on file with 3 similar allegations.

- Case# FI18-0491 (Use of Force Level 2): On 03/04/18, Sgt. Viola, 70th Precinct called the IAB Command Center to report that two prisoners were involved in a physical altercation, while lodged in the 70th Precinct Cells. PO Sher was one of the officers that intervened and separated the two prisoners. PO Sher pulled one of the prisoners off the other prisoner. No other force was utilized. The case was investigated by PBBS-IU and closed on 03/09/18 as Information and Intelligence.
- Case# FI19-0445 (Use of Force Level 2): On 05/05/19, Sgt. Viola, 70th Precinct called the IAB Command Center to report that PO Sher and PO Carcaterra responded to a 10-53. During their investigation, it was alleged that the officers utilized excessive force to place [REDACTED] under arrest. The case was investigated by PBBS-IU and closed on 05/21/19 as Partially Substantiated. It should be noted that the force allegation against PO Sher was closed as Unsubstantiated.
- Case# FI19-0447 (Use of Force Level 2): On 05/07/19, Sgt. Bennett, 70th Precinct called the IAB Command Center to report that PO Sher utilized physical force against a prisoner that refused to be fingerprinted and didn't want to be placed back inside of the holding cell. The case was investigated by PBBS-IU and closed on 05/09/19 as Information and Intelligence.

CPI disclosed 39 incidents on file with 3 similar allegations and 2 noteworthy incidents.

- ▶ Case# FI18-0491 (Use of Force Level 2): See above for further details.
- ▶ Case# FI19-0445 (Use of Force Level 2): See above for further details.
- ▶ Case# FI19-0447 (Use of Force Level 2): See above for further details.
- ▶ 03/15/16 (Charges and Specifications): On 10/18/15, PO Sher failed to comply with a lawful order given by a Sergeant to drive a Department van to the scene of a vehicle accident. In addition, PO Sher failed to wear proper uniform. As a result of this incident, PO Sher forfeited 30 Vacation Days. He was also transferred from the 120th Precinct to the 70th Precinct.
- ▶ 05/25/21 (Charges and Specifications): On 05/30/20, PO Sher failed to process found property (cellphone). Instead of vouchering the cellphone, PO Sher threw the cellphone into the sewer. In addition, PO Sher made disrespectful comments to a person. PO Sher pled guilty at a Department trial. It should be noted that the discipline for the above incident was combined with the current investigation. On 07/14/22, the Police Commissioner approved the following penalty: 30 suspension days previously served (06/05/20 to 07/06/20), an additional 25 vacation days and 1-year dismissal probation.

Subject Officer# 2:

PO Dionnys Hernandez, 70th Precinct

Date of Appointment: 07/13/2016

Probation (at the time of incident): No

Current Duty Status: Active (Full Duty)

CPR: Not on any type of monitoring.

IAPRO: No history on file

ICMS disclosed 16 incidents on file with 2 similar allegations.

- ▶ Case# OG19-09934 (Fail to Prepare Report): On 05/29/19, [REDACTED] reported to the IAB Command Center that PO Hernandez refused to take her report about a tenant in her building that was glamorizing murder. The case was investigated by PBBS-IU and closed on 06/28/19 as Unsubstantiated.
- ▶ Case# FI22-0156 (Use of Force Level 2): On 03/04/22, Capt. Suarez, 70th Precinct called the IAB Command Center to report that officers attempted to conduct a car stop on a reckless driver [REDACTED]. As officers activated their turret lights to initiate the stop, [REDACTED] accelerated and crashed into two parked vehicles. [REDACTED] was subsequently tasered in order to have him release a large dog he was holding. [REDACTED] was removed to Kings County Hospital for psychological evaluation. PO Hernandez was identified as one of the officers that assisted in the arrest of [REDACTED]. This case was investigated by PBBS-IU and closed on 03/25/22 as Partially Substantiated. It should be noted that all of the force allegations in this case were closed as Exonerated.

CPI incident 12 incidents on file with 2 similar allegations.

- ▶ Case# OG19-9934 (Fail to Prepare Report): See above for further details.
- ▶ Case# FI22-0156 (Use of Force Level 2): See above for further details.

CCRB: No history on file.

Subject Officer# 3:

PO Constantin S. Neamtu, 70th Precinct

Date of Appointment: 01/06/2016

Probation (at the time of incident): No

Current Duty Status: Active (Full Duty)

CPR: Not on any type of monitoring.

IAPRO: No history on file.

ICMS disclosed 17 incidents on file with 4 similar allegations

- ▶ Case# FI18-1022 (Use of Force Level 2): On 04/25/18, Sgt. Fraser, 70th Precinct called the IAB Command Center to report that PO Becerra and PO Neamtu responded to a family dispute at [REDACTED]. Officers arrested [REDACTED] for assault. After being placed in the RMP, [REDACTED] banged his head on the partition, causing a laceration to the center of his forehead. The case was investigated by PBBS-IU and closed on 05/25/18 as Information and Intelligence.
- ▶ Case# OG19-0696 (Fail to Prepare Report): On 01/10/19, [REDACTED] reported that officers from the 70th Precinct refused to prepare a report for him. PO Neamtu was identified as one of the officers he interacted with. The case was investigated by PBBS-IU and closed on 04/05/19 as Exonerated.
- ▶ Case# OG21-3862 (Fail to Prepare Report): On 03/25/21, [REDACTED] called the IAB Command Center to report that officers failed to take a missing person report for her. PO Neamtu was identified as one of the officers that responded to her calls for service. The case was investigated by PBBS-IU and closed on 05/28/21 as Unsubstantiated.
- ▶ Case# FI22-0248 (Use of Force Level 2): On 04/17/22, Sgt. Simpson, 70th Precinct called the IAB Command Center to report that officers responded to a dispute, which resulted in the arrest of [REDACTED]. [REDACTED] resisted arrest. He was wrestled to the ground and tasered (Drive Stun) in the back. [REDACTED] was transported to Kings County Hospital, where he was treated and released. The case was investigated by PBBS-IU and closed on 07/11/22 as Exonerated.

CPI disclosed 7 incidents on file with 4 similar allegations.

- ▶ Case# FI18-1022 (Use of Force Level 2): See above for further details.
- ▶ Case# OG19-0696 (Fail to Prepare Report): See above for further details.
- ▶ Case# OG21-3862 (Fail to Prepare Report): See above for further details.
- ▶ Case# FI22-0248 (Use of Force Level 2): See above for further details.

CCRB disclosed 1 incident on file with no similar allegations.

Subject Officer# 4:

Unidentified Officer (Unknown officer utilizing OC Spray on protestors)

Date of Appointment: N/A

Probation (at the time of incident): N/A

Current Duty Status: N/A

Complainant:

DOB: [REDACTED] Male, Black

ICMS: No other incidents on file.

IAPRO: No history on file.

CCRB: No history on file.

DAS-Lite inquiry disclosed no arrest history on file.

Victim:

Unidentified (The unidentified victim was added to this log to address the many protestors that were never identified and sprayed with OC Spray by PO Sher, PO Hernandez, and PO Neamtu).

Reporters:

Lt. Shamsul Haque, Tax# 933830, Group# 54

Lt. Steven I. Ettlinger, Tax#901519, Group# 54

Witness:

Witness Officers:

PO Mdthowhed H. Talukder, Tax# 967364, 67th Precinct

PO Arthur Becerra, Tax# 961495, 70th Precinct

PO Justin A. Stewart, Tax# 962819, 70th Precinct

DT3 Salvatore T. Carcaterra, Tax# 962972, Criminal Intel Section, formerly assigned to 70th Precinct

Lt. Chancellor Bishop, Tax# 936210, Quality Assurance Division

PO Nicole Staiger, Tax# 955527, 67th Precinct

Sgt. Imran Khan, Tax# 956020, 70th Precinct

Sgt. Eric Chow, Tax# 941556, Police Laboratory, formerly assigned to Group# 42

Details of IAB Logs:

► Log# 2020-13824

On 05/31/20, at 1145 hours, Lt. Shamsul Haque, Group# 54 emailed the IAB Command Center a Twitter video, which captured an unidentified male officer (PO Michael Sher, 70th Precinct) pull down a male's [REDACTED] mask and discharge OC Spray at him. It should be noted that when PO Sher discharged his OC spray, [REDACTED]'s hands were up in the air.

Callout# 2020-13824 was handled by Group# 54.

Note: A review of the 14 second Twitter video captured numerous protestors standing in the street with their hands raised in the air. Also present at the location were numerous uniformed officers. At the 6 second mark an officer (PO Sher), wearing a black ballistic helmet and blue surgical face mask, approached a male protestor [REDACTED] who was wearing a black hat, multi-colored book bag, black shirt, and jeans. [REDACTED] was standing at the location with both of his hands raised in the air. Upon approach, PO Sher grabbed [REDACTED]'s face mask with his right hand and then discharged OC spray with his left hand into [REDACTED]'s face.

► Log# 2020-17490

On 07/17/20, DCIA emailed the IAB Command Center a video that was attached to a New York Times article entitled, "NYPD Says It Used Restraint During Protests. Here's What the Videos Show." The video titled, "Bedford and Tilden Avenues, Brooklyn" captured an officer (PO Sher) pulling down a protestor's [REDACTED]'s mask and discharging OC spray on the protestor's face.

► Log# 2021-25531

On 11/12/21, Lt. Steven I. Ettlinger, Group# 54 called the IAB Command Center to report that DI Joseph Profeta, Commanding Officer, Group# 54 modified PO Sher under the authority of Deputy Chief Dowling in regards to IAB Log# 2020-13824. Note: It should be noted that on 06/05/20, PO Sher was suspended by DI Chambers, Group# 42, under the authority of Deputy Commissioner Reznick in regards to this incident.

Interview of Reporter [REDACTED]:

On 05/31/20, Sgt. Morano, Group# 54 was present at [REDACTED] to interview [REDACTED] in regards to this incident. [REDACTED] stated that she didn't witness the incident, but uploaded the video. [REDACTED] identified the male that was pepper-sprayed in the video as [REDACTED]. She also identified the person that recorded the incident as [REDACTED]. Due to the fact that [REDACTED] wasn't present at the location, she was unable to provide any other information regarding the incident.

Interview of Complainant [REDACTED]

On 06/02/20, DT3 Dixon, Group# 54 contacted [REDACTED] via landline, in regards to this investigation. At the time of the call, [REDACTED] stated that neither he, nor [REDACTED] would be interviewed without an attorney present. At the conclusion of the interview, [REDACTED] stated that he would contact the office of Group# 54 when he and his brother were ready to be interviewed. During this investigation, attempts to schedule an interview with [REDACTED]'s attorney [REDACTED] concluded with negative results. Although, Group# 54 was unable to interview [REDACTED] ADA Tierney, Law Enforcement Accountability Bureau, interviewed [REDACTED] in the presence of his attorney. During the interview, [REDACTED] informed ADA Tierney that he was pepper sprayed, as observed on the video footage. [REDACTED] didn't make any other allegations of force.

Canvass:

During this investigation, investigators from Group# 54 responded to the incident location (Bedford Avenue and Tilden Avenue) to conduct a canvass for video surveillance footage. The following footage of investigative value was obtained:

[REDACTED] This video didn't capture PO Sher discharge OC Spray at [REDACTED] however, it did capture [REDACTED] walking away from the incident location after being sprayed. The video commenced with [REDACTED] being assisted by two males, as he walked away from the incident location. It is clear that [REDACTED]'s feeling the continued effects of being pepper sprayed. [REDACTED] eventually walked out of view.

Group# 54 also obtained video footage of Bedford Avenue and Tilden Avenue, which was recorded by the Aviation Unit. The aerial video footage captured a large group of protestors at the above location. At 1713 hours, a female is handcuffed and placed in the rear of marked RMP# 3661. A few seconds later, the protestors completely surround the RMP and officers present at the location. Protestors are observed blocking RMP# 3661 from moving forward. Officers are then observed moving towards the crowd, pushing protestors away from RMP# 3661. At 1726 hours, [REDACTED] is observed on the right side of the frame, with his arms up. It should be noted that no force is captured being utilized against [REDACTED]. Eventually, RMP# 3661 is able to clear the intersection and drive away from the protestors.

Investigators from Group# 42 responded to Bedford Avenue and Church Avenue to conduct a canvass for video surveillance footage regarding PO Hernandez' and PO Neamtu's use of OC Spray. The following footage of investigative value was obtained: Erasmus High School: This video didn't capture PO Hernandez or PO Neamtu utilize their OC Spray; however, at the 44 minute, 53 second mark, it did capture an unidentified uniformed officer discharge OC Spray. Attempts to identify this officer were unsuccessful.

Identification of Subject Officers:

PO Michael Sher, 62nd Precinct, formerly assigned to the 70th Precinct was listed as a subject officer in this case after being identified as the officer that utilized OC Spray against [REDACTED].

PO Dionnys Hernandez, 70th Precinct was listed as a subject officer in this case after being identified as an officer that utilized OC Spray against an unidentified protestor.

PO Constantin Neamtu, 70th Precinct was listed as a subject officer in this case after being identified as an officer that utilized OC Spray against an unidentified protestor.

An Unidentified Officer was listed as a subject officer in this case after being identified as an officer that utilized OC Spray against an unidentified protestor.

Review of Department Records:

► Department Body Worn Cameras:

The following 7 BWCs of investigative value were reviewed and disclosed the following information:

PO Sher (Bedford Avenue and Tilden Avenue): The video commenced with PO Sher, along with other officers, standing in the street at the incident location (Bedford Avenue and Tilden Avenue). There are also numerous protestors standing in the street with their hands raised in the air. The protestors can be heard yelling, "NYPD suck my dick", "Shame", and "Black Lives Matter". PO Sher is observed conducting crowd control and can be heard telling protestors to "stepb ack" numerous times. While conducting crowd control, PO Sher discharged his OC Spray at protestors on the following 4 occasions:

9 minute, 41 second mark: PO Sher, who is holding OC Spray in his left hand, discharged his OC Spray (1 burst) into the face of an unidentified male that is wearing a dark colored shirt, shorts, and a red backpack. After being sprayed, the unidentified male walked away into the crowd of protestors. It should be noted that this male isn't arrested or summonsed.

11 minute, 10 second mark: PO Sher, who is holding OC Spray in his left hand, approached a male [REDACTED], who wearing a black hat, multi-color book bag, black shirt, and jeans. PO Sher pulled [REDACTED]'s mask down and discharged OC Spray into his face. Prior to being sprayed, [REDACTED] is standing in the street with both of his hands raised in the air. It should be noted that [REDACTED] isn't arrested or summonsed.

11 minutes, 42 second mark: PO Sher, who is holding OC Spray in his left hand, discharged his OC Spray (1 burst) into the face of an unidentified male that is wearing a face covering, black shirt and jeans, and green hat. After being sprayed, the unidentified male walked away into the crowd of protestors. It should be noted that this male isn't arrested or summonsed.

12 minute, 5 second mark: PO Sher, who is holding OC Spray in his left hand, discharged his OC Spray (1 burst) into the face of an unidentified male that is wearing face covering, black shirt, jeans, and hat. After being sprayed, the unidentified male walked away into the crowd of protestors. It should be noted that this male isn't arrested or summonsed.

16 minute, 22 second mark: PO Sher was captured on his BWC stating to other officers while walking down the street, "Did you see the mask or no? But the thing is, I see the guy's goggles, I ripped the shit off and I used it (referring most likely to OC spray)." The video concluded at the 20 minute, 8 second mark.

PO Talukder (Bedford Avenue and Tilden Avenue): The video commenced with PO Talukder, along with other officers, standing in the street at the incident location (Bedford Avenue and Tilden Avenue). There are also numerous protestors standing in the street yelling, "Our streets" and "Let her go". PO Talukder is observed conducting crowd control. At the 21 minute, 5 second mark, PO Sher is captured approaching a male [REDACTED], who wearing a black hat, multi-color book bag, black shirt, and jeans. PO Sher then pulled [REDACTED]'s mask down and discharged OC Spray into his face. Prior to being sprayed, [REDACTED] is standing in the street with both of his hands raised in the air. It should be noted that [REDACTED] isn't arrested or summonsed. No other information of investigative value was obtained. The video concluded at the 1 hour, 18 minute, 6 second mark.

PO Hernandez:

Video# 1 (Bedford Avenue and Tilden Avenue): The video commenced with PO Hernandez, along with other officers, standing in the street at the incident location (Bedford Avenue and Tilden Avenue) conducting crowd control. There are also numerous protestors at the location yelling at the Police. At the 6 minute, 20 second mark, PO Sher is captured approaching a male [REDACTED], who wearing a black hat, multi-color book bag, black shirt, and jeans. PO Sher then pulled [REDACTED]'s mask down and discharged OC Spray into his face. Prior to being sprayed, [REDACTED] is standing in the street with both of his hands raised in the air. It should be noted that [REDACTED] isn't arrested or summonsed. No other information of investigative value was obtained. The video concluded at the 15 minute, 55 second mark.

Video# 2 (Bedford Avenue and Church Avenue): The video commenced with PO Hernandez, along with other officers standing in the street at Bedford Avenue and Church Avenue conducting crowd control. There are numerous protestors screaming and cursing at officers. At the 4 minute, 18 second mark, there appears to be some sort of Police action taking place to the right of PO Hernandez, which isn't captured on his BWC, and caused the crowd to become excited. As the crowd begins to move forward, PO Hernandez tells the crowd to get back and is captured discharging his OC Spray. It doesn't appear that PO Hernandez' OC Spray hit anyone. The video concluded at the 11 minute, 52 second mark.

DT3 Carcaterra (Bedford Avenue and Tilden Avenue): The video commenced with DT3 Carcaterra, along with other officers, standing in the street at the incident location (Bedford Avenue and Tilden Avenue) conducting crowd control. It should be noted that DT3 Carcaterra was identified as PO Sher's partner on the date of the incident. There are also numerous protestors at the location yelling and cursing at officers. DT3 Carcaterra can be heard instructing the crowd to "back up" as marked RMP# 3661 (occupied by PO Becerra and PO Stewart), with its emergency lights and sirens activated, attempts to pass. At the 13 minute, 11 second mark, PO Sher is heard informing DT3 Carcaterra that his mace is almost done. Furthermore, at the 18-minute mark, PO Sher is captured removing his mask due to being maced. It is at this time that another officer is observed assisting PO Sher by rinsing his eyes out. PO Sher is subsequently led away from the location. Finally, at the 24 minute, 35 second mark, while in a Department van with DT3 Carcaterra, PO Sher stated that he was accidentally maced by another officer. The video concluded at the 24 minute, 35 second mark.

PO Becerra / PO Stewart (Bedford Avenue and Tilden Avenue): The video commenced with numerous officers and protestors in the street at the incident location (Bedford Avenue and Tilden Avenue). PO Becerra is the operator and PO Stewart is the recorder in marked RMP# 3661. While at the location, officers handcuff a female, without incident, that is captured spray painting on a RMP. After being handcuffed, the female is placed in the rear of RMP# 3661. Due to the fact that there are numerous protestors at the location, RMP# 3661 moved at a slow rate of speed while enroute to the 70th Precinct. At one point, the radio dispatcher can be heard transmitting a 10-85 for 10 officers surrounded at [REDACTED]. In addition, PO Becerra (Operator) is observed utilizing the RMP loud speaker to state the following two times, "Use the pepper spray, pepper spray". It should be noted that its unknown who PO Becerra is speaking to. Eventually, officers arrive at the 70th Precinct with a female prisoner.

► PETS Database

The following PCI was prepared in regards to this incident:

Invoice# 4000746511: On 06/01/20, Sgt. Huldie, Group# 42 vouchered PO Sher's OC Spray (Serial# [REDACTED]) as investigatory evidence. It should be noted that the property is still vouchered and hasn't been returned to PO Sher.

► Aided Report for PO Sher (# 2020-070-[REDACTED])

Disclosed that 05/30/20 at 1741 hours, PO Sher was sprayed with OC spray, while rendering assistance to another officer. PO Sher suffered pain to his face, shortness of breath, and irritated eyes. PO Sher was treated by EMS at the 70th Precinct, where he was provided with solution to treat his eyes.

► 67th / 70th Precinct Roll Call for 05/30/20

Assisted Group# 54 with identifying witness officers that were present at the incident.

► TRI Reports:

There were no TRI Reports prepared by the subject officers listed in this case. The below listed reports were generated by Sgt. Chow, Group# 42.

Sgt. Chow (TINC# 2020-070-[REDACTED]): This report documented that on 05/30/20, while responding to a 10-13 at the corner of Bedford Avenue and Tilden Avenue and while assisting marked RMP# 3661, with a prisoner inside, get through a crowd of protestors, PO Sher discharged his OC Spray at a person [REDACTED]. It should be noted that a review of PO Sher's BWC disclosed that while conducting crowd control, he discharged his OC Spray at 4 other unidentified individuals in separate instances.

PO Sher (TACT# 2020-070-[REDACTED]): This report documented that PO Sher utilized his OC Spray at the intersection of Bedford Avenue and Tilden Avenue in defense of self and to overcome resistance and aggression against [REDACTED].

► Review of PW Case# 2020-4

(The case was established on 06/03/20. The case was assigned to Sgt. Chow, Group# 42 and closed on 06/21/21 as Information and Intelligence.

On 06/05/20, PO Sher was suspended by DI Chambers, Group# 42, under the authority of Deputy Commissioner Reznick. As a result of this investigation PO Sher received charges and specifications for the following: Specification# 1: Force OC Spray and Specification# 2: Fail Provide Medical Care, Fail to Notify Supervisor. Improper Activity Logs, and Fail to Prepare TRI Report.

During this investigation, PO Sher, PO Hernandez, PO Talukder were interviewed. Refer to the "Patrol Guide Hearings" Section of this report for further details regarding these interviews.

Computer and Related Checks:

► ICAD database disclosed 1 job related to this incident:

ICAD# [REDACTED] Generated on 05/30/20 at 1700 hours, at the intersection of Bedford Avenue and Tilden Avenue, after a portable requested additional units for a large group of protestors (approximately 3000) in the street.

Note: A review of the above radio transmissions disclosed no information of investigative value.

Conferrals Conducted:

► Insp. David Wall, Commanding Officer, 70th Precinct: On 05/31/20, at the direction of Deputy Chief Cooper, Commanding Officer Criminal Investigations, Insp. Wall was instructed to ensure that PO Sher wasn't assigned any enforcement duties.

► Sgt. Dargenio, RTCC, Facial Recognition Unit: Assisted Group# 54 by attempting to identify the three unidentified persons that PO Sher discharged OC spray at. After sending photographs of these persons to the Facial Recognition Unit, they were unable to make any positive identifications.

► Bureau Chief Alexis / Attorney Tierney, Kings County District Attorney's Office: Waived Criminality on 09/07/22.

► DT2 Rogers, IAB Intel, RFI# 20-0928

The agent reported that PO Sher was highly active. He made a high number of arrests and issued numerous summonses. PO Sher was known to use very little discretion. PO Sher isn't known to be heavy handed and used the necessary amount of force.

The agent reported that there is a rumor in the command that after the incident in question, PO Sher can be heard on BWC video boasting about pulling down the face mask of a protestor.

► Ms. Beverly Walker, NYC Comptroller's Office: Disclosed that [REDACTED] filed a notice of claim in regards to this incident in the amount of 5 million dollars.

► Agency Attorney Melissa Kohilakis, Legal Bureau's Police Action Litigation Section: Disclosed that [REDACTED] notice of claim is open and pending in Eastern District Federal Court under docket number [REDACTED]

► PO Cronin, Firearms and Tactics Section: Disclosed that PO Sher's last issued OC Spray was OC Serial# [REDACTED] issued on 2019, expiration date, 11/2020. It should be noted that this was the OC spray, which was vouchered on 06/01/20, by Sgt. Huldie, Group# 42, under invoice# [REDACTED]

► AA Green, Department Advocate's Office: As a result of this investigation PO Sher received charges and specifications for the following: Specification# 1: Force OC Spray and Specification# 2: Fail to Provide Medical Care, Fail to Notify Supervisor, Improper Activity Logs, and Fail to Prepare TRI Report. PO Sher was served his charges and specifications on 07/09/20. After a Department trial, PO Sher was found guilty of Failing to Provide Medical Care and failing to Notify a Supervisor. It should be noted that regarding the allegation of Force OC Spray, PO Sher was found not guilty. On 07/14/22, the Police Commissioner approved the following penalty: 30 suspension days previously served (06/05/20 to 07/06/20), an additional 25 vacation days and 1-year dismissal probation. In addition, PO Neamtu and PO Hernandez were issued LOI's for Force OC Spray, Fail to Prepare TRI Report, and Fail to Notify Supervisor. It should be noted that Group# 42 requested charges and specifications against PO Neamtu and PO Hernandez, but the DAO declined and issued LOI's. Furthermore, the above discipline for PO Sher was combined with Case# M21-0782, which was assigned to PBBS-IU. In Case# M21-0782, PO Sher failed to process found property (cellphone). Instead of vouchering the cellphone, PO Sher threw the cellphone into the sewer. In addition, PO Sher made disrespectful comments to a person.

Other Information of Investigative Value:

► Social Media Inquiry

Disclosed two news article related to this incident. Details are as follows:

TMZ: The article titled, "NYC Protest Cops Remove Protestor's Mask and Pepper Spray Him" was published on 05/31/20.

New York Daily News: The article titled, "Mask cop's brag" was published on 06/17/20.

Note: A review of the above articles disclosed no additional witnesses or videos.

► CCRB Case# 202003703: Generated in regards to this incident, disclosed that this case was assigned to CCRB Investigator Lozada and closed on 11/01/21 as Substantiated with Charges and Specifications issued by Group #54. No MOS were interviewed.

Patrol Guide 206-13 Hearings:

► On 06/05/20, DI Chambers, Lt. Mattera, and Sgt. Chow interviewed PO Talukder as a witness officer under the provisions of PG 206-13 at 315 Hudson Street. PO Talukder stated that on 05/30/20, he performed duty on the 2nd Platoon, assigned to Brooklyn Hospital. After being relieved from the hospital and while heading back to the 67th Precinct, PO Talukder responded to a 10-13 at Bedford Avenue and Tilden Avenue. Upon arrival, PO Talukder observed a group of approximately 1000 people, who were screaming, yelling, and attempting to fight the Police. While at the location, PO Talukder felt that his safety was in danger. Due to the fact that the crowd was very close to him, he decided to take out his baton in order to maintain distance. At no time did PO Talukder strike any protestors with his baton or discharge OC Spray at them. It was at this time during the interview that PO Talukder was given an opportunity to review the Twitter video that was posted in regards to this incident. After reviewing the video, PO Talukder identified himself as being present. PO Talukder stated that he didn't know any of the officers in the video that were standing next to him, because they were all from another command. PO Talukder explained that because he was concentrating on the crowd, he didn't observe what the officers around him were doing. PO Talukder further stated that he was scanning the crowd and never observed any officers discharge OC Spray. At the conclusion of the interview, PO Talukder stated that the following day, he became aware of a viral video, which captured PO Sher utilizing pepper spray against the crowd. At no time while at the above location did PO Talukder observe PO Sher or any other officers utilize OC Spray against civilians. A review of PO Talukder's activity log entries related to this incident disclosed that they were proper and within Department guidelines.

► On 06/05/20, DI Chambers, Lt. Mattera, and Sgt. Chow interviewed PO Hernandez as a witness officer (later changed to a subject officer) under the provisions of PG 206-13 at 315 Hudson Street. PO Hernandez stated that on 05/30/20, he performed duty on the 3rd Platoon, partnered with PO Neamtu, assigned to 70th Precinct Sector Boy. His supervisor for the tour was Sgt. Khan. PO Hernandez stated that his first job of the day was for a 10-13 at Bedford Avenue and Tilden Avenue. Upon arrival, he observed a large crowd that surrounded RMP# 3661 (PO Stewart / PO Becerra), which was transporting a female prisoner [REDACTED]. While at the location, PO Hernandez recalled multiple units calling for assistance. PO Hernandez described the crowd as rowdy, violent, and loud. PO Hernandez stated that people were throwing bricks, rocks, and bottles of water at him and other officers, which caused him to fear for his safety. It was at this time during the interview that PO Hernandez was shown a screenshot of the Twitter video that was posted in regards to this incident. PO Hernandez was familiar with where the screenshot was taken from. PO Hernandez stated that he observed the video on social media after the protest. PO Hernandez identified himself in the screenshot and confirmed that he was present at the time of the incident. Although PO Hernandez was present at the time of the incident, he stated that while at the incident location, he never observed PO Sher or any other officer discharge OC Spray at anyone. Due to the fact that PO Hernandez was concentrating on the crowd that was in front of him, he didn't observe the actions of PO Sher or the other officers that were around him. When asked if PO Hernandez utilized his OC Spray at the incident location, he replied, "No". However, PO Hernandez stated that later that day (approximately 3 hours later) at a different location (Bedford Avenue and Church Avenue), he discharged OC Spray (unknown amount of times) at a group of people that were fighting with Police. After discharging his OC Spray, PO Hernandez stated that he didn't arrest or summons anyone. He also stated that he didn't notify a supervisor or prepare a TRI report to document the OC spray that he discharged. A review of PO Hernandez' activity log entries related to this incident disclosed that they were improper and not within Department guidelines. PO Hernandez failed to document that he discharged his OC Spray.

► On 06/05/20, DI Chambers, Lt. Mattera, and Sgt. Chow interviewed PO Sher as a subject officer under the provisions of PG 206-13 at 315 Hudson Street. PO Sher stated that on 05/30/20, he performed duty on the 3rd Platoon, partnered with DT3 Carcaterra, assigned to 70th Precinct Response Auto# 1. During the tour, PO Sher stated that his unit responded to a 10-13 at Bedford Avenue and Tilden Avenue. Upon arrival, PO Sher observed approximately 10 officers that were surrounded by over 100 protestors. The protestors were yelling at officers and moving around the barriers that were in place. It should be noted that the protestors appeared to be angry about a female [REDACTED]. The protestors were also preventing the RMP from transporting [REDACTED] to the 70th Precinct. While at the above location, PO Sher utilized his OC Spray against protestors because he was in fear for his safety. The protestors were throwing rocks and began to surround him and the other officers present at the location. After informing the radio dispatcher that they were surrounded and requesting additional units, PO Sher explained that he discharged his OC Spray in order to clear a path for him and the other officers present. A short time later additional officers began to arrive at the location. The officers managed to push back the crowd and clear a path. Regarding the Twitter video, PO Sher identified himself as the officer that utilized OC Spray against the male protestor ([REDACTED]). PO Sher explained that while attempting to clear a path, he instructed [REDACTED] to move back several times; however, [REDACTED] refused to comply and took steps toward him, which resulted in PO Sher discharging his OC Spray at him. Due to the fact that [REDACTED] was wearing glasses and a mask at the time of the incident, PO Sher attempted to remove [REDACTED] glasses before discharging his OC Spray in order to make sure the spray went into his eyes. PO Sher further stated that as he went to remove [REDACTED] glasses, the mask he [REDACTED] was wearing also came down. It should be noted that PO Sher's intent was to remove [REDACTED]'s glasses for the OC Spray to be effective and in the process of removing the glasses, his mask came off and that was what was captured on the Twitter video. At no time while at the protest did a supervisor instruct PO Sher to discharge his OC Spray. PO Sher didn't recall how many times he discharged his OC Spray at protestors, because he

had tunnel vision and described the day as chaotic; however, each time he utilized his OC Spray PO Sher was in fear for his safety. PO Sher didn't arrest or summons any of the persons he OC Sprayed due to having a lack of resources. After discharging his OC Spray, PO Sher admitted that he failed to prepare a TRI Report, failed to notify a supervisor, and failed to ascertain if any of the persons he sprayed needed medical attention. It was at this time during the interview that PO Sher was given an opportunity to review his BWC and explain each time he was captured utilizing his OC Spray. Details are as follows:

9 minute, 41 second mark: This is the first time PO Sher discharged his OC spray at the incident location. PO Sher discharged his OC Spray at a male, who was wearing a red backpack, that refused to back up. PO Sher remembered dealing with this individual the previous night at the Barclay Center. On the previous night this male was wearing a backpack filled with stones that were being thrown at officers. At the time PO Sher discharged his OC Spray, he felt this male was a threat and could have had stones in his backpack. PO Sher also stated that while he was attempting to clear a path the male refused several orders to back up. Due to the fact that there were only a few officers at the location, PO Sher didn't attempt to arrest or summons the male.

11 minute, 10 second mark (Twitter Video Incident): This is the second time PO Sher discharged his OC spray at the incident location. PO Sher utilized his OC Spray against a male [REDACTED] that refused several orders to move back. Instead of moving back, [REDACTED] took a step forward towards PO Sher, which resulted in PO Sher discharging his OC Spray. Due to the fact that [REDACTED] was wearing glasses, PO Sher attempted to remove the glasses to ensure that his OC Spray was effective. It should be noted that when he pulled off [REDACTED]'s glasses, the mask he was wearing also came off. Due to the fact that there were only a few officers at the location, PO Sher didn't attempt to arrest or summons [REDACTED].

11 minutes, 42 second mark: This is the third time PO Sher discharged his OC spray at the incident location. PO Sher discharged his OC Spray (1 burst) into the face of an unidentified male that is wearing a face covering, black shirt and jeans, and green hat. After being sprayed, the unidentified male walked away into the crowd of protestors. It should be noted that this male isn't arrested or summonsed. PO Sher didn't have any recollection of this incident.

12 minute, 5 second mark: PO Sher discharged his OC Spray (1 burst) into the face of an unidentified male that is wearing face covering, black shirt, jeans, and hat. PO Sher stated that prior to discharging his OC Spray, this male threw a rock towards him. It should be noted that PO Sher's BWC didn't capture the male's actions prior to being sprayed. Due to a lack of resources, PO Sher didn't attempt to arrest or summons the male.

At the conclusion of the interview, PO Sher stated that while at the incident location, he was sprayed with mace. PO Sher was adamant that he didn't spray himself and didn't know where the pepper spray came from. A review of PO Sher's activity log entries related to this incident disclosed that they were improper and not within Department guidelines. PO Sher failed to document that he discharged OC spray at protestors.

► On 06/17/20, DI Chambers, Lt. Mattera, and Sgt. Chow interviewed Sgt. Khan as a witness officer under the provisions of PG 206-13 at 315 Hudson Street. Sgt. Khan stated that on 05/30/20, he performed duty on the 3rd Platoon as the 70th Precinct Patrol Supervisor. At approximately 1700 hours, Sgt. Khan responded to a 10-13 at Bedford Avenue and Tilden Avenue. Upon arrival, Sgt. Khan observed a large group of protestors that were yelling and blocking traffic. While at the location, Sgt. Khan stated that he and other officers were surrounded by protestors. Sgt. Khan further stated that some of these protestors were throwing various types of objects at officers, which caused him to fear for his safety. While at this location, Sgt. Khan never instructed any officers to discharge OC Spray at protestors. Furthermore, Sgt. Khan never observed any officers discharge OC Spray at protestors. A few days after the incident, Sgt. Khan became aware of a Twitter video that was posted on the internet, which captured PO Sher discharging his OC Spray. Sgt. Khan stated that he wasn't present at the location when PO Sher utilized the OC Spray. At no time did PO Sher ever inform Sgt. Khan that he utilized his OC Spray at protestors. At the conclusion of the interview, Sgt. Khan stated that he wasn't aware that later that night, PO Hernandez also utilized his OC Spray against protestors at a different location. Sgt. Khan stated that PO Hernandez never informed him that he discharged his OC Spray at protestors. A review of Sgt. Khan's activity log entries related to this incident disclosed that they were proper and within Department guidelines.

► On 06/18/20, Lt. Ganci and DT1 Rodriguez interviewed PO Stewart as a witness officer under the provisions of PG 206-13 at 315 Hudson Street. PO Stewart (Operator) stated that on 05/30/20, he performed duty on the 3rd Platoon, partnered with PO Becerra (Recorder), assigned to 70th Precinct Charlie in marked RMP# 3661. During the tour, PO Stewart stated that his unit responded to a 10-13 at Bedford Avenue and Tilden Avenue. Upon arrival, PO Stewart observed a large crowd (Approximately 400 people) at the location. PO Stewart stated that some of these people were utilizing spray paint to vandalize RMP's. After the crowd was instructed to disperse, they began to get aggressive and throw bottles at officers. While at the above location, PO Becerra observed a [REDACTED]

[REDACTED] It was at this time that the crowd surrounded their RMP and prevented them from moving, which resulted in PO Stewart requesting that other officers present at the location assist them by clearing a path for their RMP. While attempting to clear the intersection, PO Stewart stated that protestors were banging on his RMP and attempted to break the RMP windows. PO Stewart never utilized the RMP loud speaker to tell officers to utilize OC Spray, nor did he recall hearing any other officers make this statement, but after reviewing his BWC footage PO Stewart identified PO Becerra as the officer that made the above statement. Eventually, PO Stewart managed to clear the intersection and drive to the 70th Precinct. At the conclusion of the interview, PO Stewart stated that a few days after the above incident, he became aware of a viral video, which captured PO Sher utilizing pepper spray against the crowd. At no time while at the above location did PO Stewart observe PO Sher or any other officers utilize OC Spray against civilians. PO Stewart also stated that while at the above location, he never observed any injured persons. A review of PO Stewart's activity log entries related to this incident disclosed that they were proper and within Department guidelines.

► On 06/18/20, Lt. Ganci and DT1 Rodriguez interviewed PO Becerra as a witness officer under the provisions of PG 206-13 at 315 Hudson Street. PO Becerra (Recorder) stated that on 05/30/20, he performed duty on the 3rd Platoon, partnered with PO Stewart (Operator), assigned to 70th Precinct Charlie in marked RMP# 3661. During the tour, PO Becerra stated that his unit responded to a 10-13 at Bedford Avenue and Tilden Avenue. Upon arrival, PO Becerra observed a large crowd (Approximately 500 people) at the location. PO Becerra stated that the crowd was yelling at officers, calling them "Pigs". While at this location, PO Becerra observed [REDACTED]

[REDACTED] It was at this time that the crowd surrounded their RMP and

blocked them in. PO Becerra requested assistance from other officers present at the location in order to clear a path from their RMP. PO Becerra also utilized his Department radio to request that the radio dispatcher send additional units to his location. While attempting to clear the intersection, PO Becerra stated that protesters were banging on his RMP and throwing bottles. PO Becerra explained that he was in fear of his safety. Due to the fact that it appeared that officers were having a difficult time pushing the crowd back, PO Becerra utilized the RMP loud speaker to tell officers to utilize OC Spray. PO Becerra felt that if the officers utilized their OC Spray against the crowd, they would have been able to more easily move the crowd back. Although PO Becerra made this statement, he never observed any officers utilize OC Spray against the crowd. Eventually, approximately 20 minutes later, PO Becerra stated that his unit managed to clear the intersection and drive to the 70th Precinct. At the conclusion of the interview, PO Becerra stated that while at the above location, he never observed any injured persons. At no time did PO Becerra observe PO Sher, nor any other officers utilize OC Spray against civilians. A review of PO Becerra's activity log entries related to this incident disclosed that they were proper and within Department guidelines.

► On 07/27/20, Lt. Mattera and Sgt. Chow interviewed PO Neamtu as a witness officer (later changed to a subject officer) under the provisions of PG 206-13 at 315 Hudson Street. PO Neamtu stated that on 05/30/20, he performed duty on the 3rd Platoon, partnered with PO Hernandez, assigned to 70th Precinct Sector Boy. His supervisor for the tour was Sgt. Khan. During the tour, PO Neamtu recalled that his unit responded to a 10-13 at Bedford Avenue and Tilden Avenue. While at Bedford Avenue and Tilden Avenue, PO Neamtu assisted other officers clear a path for a RMP that was being surrounded by protestors. At no time did PO Neamtu observe PO Sher discharge OC Spray at any protestors. PO Neamtu also recalled responding the Bedford Avenue and Church Avenue later in the tour. While conducting crowd control at Bedford Avenue and Church Avenue, PO Neamtu stated that protestors threw rocks and bottles at him and other officers, causing him to fear for his safety. At no time did PO Neamtu observe PO Hernandez utilize his OC Spray at the protestors while at Bedford Avenue and Church Avenue; however, PO Neamtu admitted that he discharged his OC Spray at approximately 2000 hours, while in the vicinity of Erasmus High School. At the time he utilized his OC spray, PO Neamtu and other officers were being attacked by protestors that were throwing rocks and bottles at them. After discharging his OC Spray, PO Neamtu stated that he didn't arrest or summons anyone. He also stated that he didn't prepare a TRI report to document the OC spray that he discharged. A review of PO Neamtu's activity log entries related to this incident disclosed that they were improper and not within Department guidelines. PO Neamtu failed to document that he discharged his OC Spray.

► On 01/14/21, Lt. Mattera and Sgt. Chow re-interviewed PO Neamtu as a subject officer under the provisions of PG 206-13 at [REDACTED]. PO Neamtu stated that on 05/30/20, he performed duty on the 3rd Platoon, partnered with PO Hernandez, assigned to 70th Precinct Sector Boy. During the tour, PO Neamtu responded to a 10-13 at Bedford Avenue and Tilden Avenue. Upon arrival, he observed a large group of protestors surrounding a RMP, preventing the RMP from moving. PO Neamtu described this group as being hostile. The protestors were throwing rocks and bottles at him and other officers present, causing him to fear for his safety. During his tour, PO Neamtu also responded to Bedford Avenue and Church Avenue. It was at this time that he was given an opportunity to review PO Hernandez' BWC. After reviewing the footage, PO Neamtu admitted that he discharged his OC Spray at a group of protestors because he was in fear of his safety. PO Neamtu explained that at the time he discharged his OC Spray, protestors were throwing various objects at Police. After discharging his OC Spray, PO Neamtu stated that he didn't arrest or summons anyone. He also stated that he didn't notify a supervisor or prepare a TRI report to document the OC spray that he discharged.

Supervisory Issues:

There were no supervisory issues in this case.

Programmatic Review:

Not Required.

Conclusion:

On 05/31/20, Lt. Haque, Group# 54 emailed the IAB Command Center a 14 second Twitter video, which captured numerous protestors standing in the street with their hands raised in the air. Also present at the location were numerous uniformed officers. At the 6 second mark of the video an officer (PO Sher), wearing a black ballistic helmet and blue surgical face mask, approached a male protestor [REDACTED], who wearing a black hat, multi-color book bag, black shirt, and jeans. [REDACTED] was standing at the location with both of his hands raised in the air. Upon approach, PO Sher grabbed [REDACTED]'s face mask with his right hand and then discharged OC spray with his left hand into [REDACTED]'s face. [REDACTED] wasn't arrested or summonsed in regards to this incident. PO Sher's actions were captured on his Department BWC. As a result of this investigation, PO Sher received charges and specifications for Force-OC Spray, Fail to Notify Supervisor, Fail to Prepare TRI Report, Fail to Provide Medical Attention, and Improper Activity Log Entries. After a Department trial, PO Sher was found guilty on all of the above, except for Force-OC Spray. On 07/14/22, the Police Commissioner approved the following penalty: 30 suspension days previously served (06/05/20 to 07/06/20), an additional 25 vacation days and 1-year dismissal probation. It should be noted that the discipline for the above incident was combined with another incident from 05/30/20, which was investigated by PBBS-IU, where PO Sher received charges and specifications for failing to process found property (cellphone). Instead of vouchering the cellphone, PO Sher threw the cellphone into the sewer. In addition, PO Sher made disrespectful comments to a person. Furthermore, during this investigation PO Neamtu and PO Hernandez were identified as being present at the incident location. After reviewing their BWC footage and conducting Department interviews, it was determined that both of these officers improperly discharged their OC spray at protestors. PO Neamtu and PO Hernandez also Failed to Notify a Supervisor, Failed to Prepare a TRI Report, and had Improper Activity Log Entries. Group# 42 requested charges and specifications against both of these officers for the above allegations; however, the DAO declined and issued LOIs in lieu of charges and specifications. This case will be closed with an overall disposition of Partially Substantiated.

Subjects Involved						
Name	Status	Sex	Race	Dob		
UNIDENTIFIED	UNIFORM MEMBER OF SERVICE					
Allegations						
1	Full Allegation Force - OC Spray	Classification Arrest Effectuated	Allegation Index O-Other	Allegation Date 08/17/2022	Finding 12 - Unsubstantiated	Finding Date 09/07/2022
		Comments This investigation was unable to prove or disprove if the force utilized by the unidentified officer was excessive. Investigators from Group# 54 were unable to identify the officer that discharged his OC Spray or the protestor. Therefore, this allegation will be closed as Unsubstantiated.				
2	Full Allegation Fail to Provide Medical Care -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 08/17/2022	Finding 12 - Unsubstantiated	Finding Date 09/07/2022
		Comments This investigation was unable to prove or disprove if the protestor sprayed by the unidentified officer was injured. Investigators from Group# 54 were unable to identify the officer that discharged his OC Spray or the protestor. Therefore, this allegation will be closed as Unsubstantiated.				
3	Full Allegation Fail to Prepare Report - TRI Report	Classification Abuse of Dept Regulations	Allegation Index FTR-Fail to Take/Make Report	Allegation Date 08/17/2022	Finding 12 - Unsubstantiated	Finding Date 09/07/2022
		Comments This investigation was unable to prove or disprove if the unidentified officer prepared a TRI report in regards to this incident. Investigators from Group# 54 were unable to identify the officer that discharged his OC Spray or the protestor. Therefore, this allegation will be closed as Unsubstantiated.				
4	Full Allegation Use of Force - Level 2	Classification Arrest Effectuated	Allegation Index Force Investigation Notification	Allegation Date 08/17/2022	Finding 04 - Info. and Intelligence	Finding Date 09/07/2022
		Comments On 05/31/20, Lt. Haque, Group# 54 emailed the IAB Command Center a 14 second Twitter video, which captured numerous protestors standing in the street with their hands raised in the air. Also present at the location were numerous uniformed officers. At the 6 second mark of the video an officer (PO Sher), wearing a black ballistic helmet and blue surgical face mask, approached a male protestor [REDACTED] who wearing a black hat, multi-color book bag, black shirt, and jeans. [REDACTED] was standing at the location with both of his hands raised in the air. Upon approach, PO Sher grabbed [REDACTED]'s face mask with his right hand and then discharged OC spray with his left hand into [REDACTED]'s face. [REDACTED] wasn't arrested or summonsed in regards to this incident. During this investigation, video surveillance footage from Erasmus High School was obtained and captured an unidentified officer discharge OC Spray at a protestor that was passively resisting. This allegation will be closed as Information and Intelligence.				
5	Full Allegation Fail to Notify - Supervisor	Classification Abuse of Dept Regulations	Allegation Index Fail to Make Notification	Allegation Date 09/07/2022	Finding 12 - Unsubstantiated	Finding Date 09/07/2022
		Comments This investigation was unable to prove or disprove if the unidentified officer notified a supervisor that he discharged OC spray at a protestor. Investigators from Group# 54 were unable to identify the officer that discharged his OC Spray or the protestor. Therefore, this allegation will be closed as Unsubstantiated.				
Name	Status	Sex	Race	Dob		
951244 MICHAEL SHER POM (070-070 PRECINCT)	UNIFORM MEMBER OF SERVICE	MALE	WHITE			
Allegations						
1	Full Allegation Use of Force - Level 2	Classification Arrest Effectuated	Allegation Index Force Investigation Notification	Allegation Date 05/31/2020	Finding 04 - Info. and Intelligence	Finding Date 09/07/2022
		Comments On 05/31/20, Lt. Haque, Group# 54 emailed the IAB Command Center a 14 second Twitter video, which captured numerous protestors standing in the street with their hands raised in the air. Also present at the location were numerous uniformed officers. At the 6 second mark of the video an officer (PO Sher), wearing a black ballistic helmet and blue surgical face mask, approached a male protestor [REDACTED]				

		██████ who wearing a black hat, multi-color book bag, black shirt, and jeans. ██████ was standing at the location with both of his hands raised in the air. Upon approach, PO Sher grabbed ██████'s face mask with his right hand and then discharged OC spray with his left hand into ██████'s face. ██████ wasn't arrested or summonsed in regards to this incident. This allegation will be closed as Information and Intelligence.				
2	Full Allegation Force - OC Spray	Classification Arrest Effectuated	Allegation Index O-Other	Allegation Date 06/03/2020	Finding 07 - Substantiated	Finding Date 09/07/2022
		Comments Specification# 1 Said Police Officer Michael Sher, while assigned to the 70 Precinct, while on duty on or about 05/30/20, within the confines of the 70 Precinct, wrongfully and without just cause used force against one or more people, including pulling down glasses or other eyewear or face masks, and spraying the faces of said people with oleoresin capsicum pepper spray, causing said people to suffer pain and injury. This allegation will be closed as Substantiated / Charges and Specifications issued. It should be noted that after a Department trial, PO Sher was found not guilty for this allegation.				
3	Full Allegation FADO Force - OC Spray	Classification Arrest Effectuated	Allegation Index O-Other	Allegation Date 06/03/2020	Finding 04 - Info. and Intelligence	Finding Date 09/07/2022
		Comments This case is being investigated by CCRB Investigator Lozado under CCRB Case# 202003703. The case was closed on 11/01/21 as Substantiated with Charges and Specifications issued by Group #54. This allegation will be closed as Information and Intelligence.				
4	Full Allegation Modified MOS - Other - IAB	Classification NOTIFICATION/Additional Information	Allegation Index ADD-Additional Information	Allegation Date 11/12/2021	Finding 04 - Info. and Intelligence	Finding Date 09/07/2022
		Comments On 11/12/21, Lt. Steven I. Ettlinger, Group# 54 called the IAB Command Center to report that DI Joseph Profeta, Commanding Officer, Group# 54 modified PO Sher under the authority of Deputy Chief Dowling in regards to IAB Log# 2020-13824. This allegation will be closed as Information and Intelligence.				
5	Full Allegation Memobook Incomplete/Improper -	Classification Abuse of Dept Regulations	Allegation Index Administrative Integrity Issue	Allegation Date 09/07/2022	Finding 07 - Substantiated	Finding Date 09/07/2022
		Comments Specification# 2 Said Police Officer Michael Sher, while assigned to the 70 Precinct, while on duty on or about 05/30/20, having used force against one or more people, including pulling down glasses or other eyewear or face masks, and spraying said people with oleoresin capsicum pepper spray, wrongfully failed to obtain or to attempt to obtain medical attention for any injured person, notify his immediate supervisor regarding his use of force and oleoresin capsicum peppery spray, document his use of force in his Activity Log, or prepare a "Threat, Resistance, or Injury (T.R.I) Interaction Report," as required. This allegation will be closed as Substantiated / Charges and Specifications issued. It should be be noted that after a Department trial, PO Sher was found guilty of this allegation. On 07/14/22, the Police Commissioner approved the following penalty: 30 suspension days previously served (06/05/20 to 07/06/20), an additional 25 vacation days and 1-year dismissal probation.				
6	Full Allegation Aided MOS - Injured - Result of Taking Police Action	Classification NOTIFICATION/Additional Information	Allegation Index ADD-Additional Information	Allegation Date 09/07/2022	Finding 04 - Info. and Intelligence	Finding Date 09/11/2022
		Comments On 05/30/20, PO Sher was sprayed with OC spray, while rendering assistance to another officer. PO Sher suffered pain to his face, shortness of breath, and irritated eyes. PO Sher was treated by EMS at the 70th Precinct, where he was provided with solution to treat his eyes. Aided Report# 2020-070-██████ was prepared. This allegation will be closed as Information and Intelligence.				
7	Full Allegation Suspended MOS - Other - IAB	Classification NOTIFICATION/Additional Information	Allegation Index ADD-Additional Information	Allegation Date 09/07/2022	Finding 04 - Info. and Intelligence	Finding Date 09/07/2022
		Comments On 06/05/20, PO Sher was suspended by DI Chambers, Group# 42, under the authority of Deputy Commissioner Reznick in regards to this incident. This allegation will be closed as Information and Intelligence.				

8	Full Allegation Suspended To Modified -	Classification NOTIFICATION/Additional Information	Allegation Index ADD-Additional Information	Allegation Date 09/07/2022	Finding 04 - Info. and Intelligence	Finding Date 09/07/2022
		Comments On 07/06/20, PO Sher went from being suspended to being placed on Modified assignment. This allegation will be closed as Information and Intelligence.				
9	Full Allegation Fail to Prepare Report - TRI Report	Classification Abuse of Dept Regulations	Allegation Index FTR-Fail to Take/Make Report	Allegation Date 09/07/2022	Finding 07 - Substantiated	Finding Date 09/07/2022
		Comments Specification# 2 Said Police Officer Michael Sher, while assigned to the 70 Precinct, while on duty on or about 05/30/20, having used force against one or more people, including pulling down glasses or other eyewear or face masks, and spraying said people with oleoresin capsicum pepper spray, wrongfully failed to obtain or to attempt to obtain medical attention for any injured person, notify his immediate supervisor regarding his use of force and oleoresin capsicum peppery spray, document his use of force in his Activity Log, or prepare a "Threat, Resistance, or Injury (T.R.I) Interaction Report," as required. This allegation will be closed as Substantiated / Charges and Specifications issued. On 07/14/22, the Police Commissioner approved the following penalty: 30 suspension days previously served (06/05/20 to 07/06/20), an additional 25 vacation days and 1-year dismissal probation.				
10	Full Allegation Fail to Provide Medical Care -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 09/07/2022	Finding 07 - Substantiated	Finding Date 09/07/2022
		Comments Specification# 2 Said Police Officer Michael Sher, while assigned to the 70 Precinct, while on duty on or about 05/30/20, having used force against one or more people, including pulling down glasses or other eyewear or face masks, and spraying said people with oleoresin capsicum pepper spray, wrongfully failed to obtain or to attempt to obtain medical attention for any injured person, notify his immediate supervisor regarding his use of force and oleoresin capsicum peppery spray, document his use of force in his Activity Log, or prepare a "Threat, Resistance, or Injury (T.R.I) Interaction Report," as required. This allegation will be closed as Substantiated / Charges and Specifications issued. On 07/14/22, the Police Commissioner approved the following penalty: 30 suspension days previously served (06/05/20 to 07/06/20), an additional 25 vacation days and 1-year dismissal probation.				
11	Full Allegation Fail to Notify - Supervisor	Classification Abuse of Dept Regulations	Allegation Index Fail to Make Notification	Allegation Date 09/07/2022	Finding 07 - Substantiated	Finding Date 09/07/2022
		Comments Specification# 2 Said Police Officer Michael Sher, while assigned to the 70 Precinct, while on duty on or about 05/30/20, having used force against one or more people, including pulling down glasses or other eyewear or face masks, and spraying said people with oleoresin capsicum pepper spray, wrongfully failed to obtain or to attempt to obtain medical attention for any injured person, notify his immediate supervisor regarding his use of force and oleoresin capsicum peppery spray, document his use of force in his Activity Log, or prepare a "Threat, Resistance, or Injury (T.R.I) Interaction Report," as required. This allegation will be closed as Substantiated / Charges and Specifications issued. On 07/14/22, the Police Commissioner approved the following penalty: 30 suspension days previously served (06/05/20 to 07/06/20), an additional 25 vacation days and 1-year dismissal probation.				
12	Full Allegation Charges & Specifications - IAB	Classification NOTIFICATION/Additional Information	Allegation Index CS-Charges and Specifications	Allegation Date 09/07/2022	Finding 04 - Info. and Intelligence	Finding Date 09/07/2022
		Comments On 06/16/20, charges and specifications were preferred against PO Sher by DI Chambers, Group# 42, under the authority of Assistant Chief O'Neill. The following two specifications were preferred. Specification# 1: Said Police Officer Michael Sher, while assigned to the 70 Precinct, while on duty on or about 05/30/20, within the confines of the 70 Precinct, wrongfully and without just cause used force against one or more people, including pulling down glasses or other eyewear or face masks, and spraying the faces of said people with oleoresin capsicum pepper spray, causing said people to suffer pain and injury. This allegation will be closed as Substantiated / Charges and Specifications issued. It should be noted that after a Department trial, PO Sher was found not guilty for this allegation. Specification# 2: Said Police Officer Michael Sher, while assigned to the 70 Precinct, while on duty on or about 05/30/20, having used force against one or more people, including pulling down glasses or other eyewear or face masks, and spraying said people with oleoresin capsicum pepper spray, wrongfully failed to obtain or to attempt to obtain medical attention for any injured person, notify his				

		immediate supervisor regarding his use of force and oleoresin capsicum peppery spray, document his use of force in his Activity Log, or prepare a "Threat, Resistance, or Injury (T.R.I) Interaction Report," as required. This allegation will be closed as Substantiated / Charges and Specifications issued. On 07/14/22, the Police Commissioner approved the following penalty: 30 suspension days previously served (06/05/20 to 07/06/20), an additional 25 vacation days and 1-year dismissal probation. This allegation will be closed as Information and Intelligence.				
13	Full Allegation FADO Abuse of Authority - Fail to Provide Medical Care	Classification Abuse of Dept Regulations	Allegation Index FADO	Allegation Date 09/07/2022	Finding 04 - Info. and Intelligence	Finding Date 09/07/2022
	Comments This case is being investigated by CCRB Investigator Lozado under CCRB Case# 202003703. The case was closed on 11/01/21 as Substantiated with Charges and Specifications issued by Group #54. This allegation will be closed as Information and Intelligence.					
Name 961000 CONSTANTIN NEAMTU POM (070-070 PRECINCT)		Status UNIFORM MEMBER OF SERVICE		Sex MALE	Race WHITE	Dob [REDACTED]
Allegations						
1	Full Allegation Use of Force - Level 2	Classification Arrest Effectuated	Allegation Index Force Investigation Notification	Allegation Date 08/17/2022	Finding 04 - Info. and Intelligence	Finding Date 09/07/2022
	Comments On 05/31/20, Lt. Haque, Group# 54 emailed the IAB Command Center a 14 second Twitter video, which captured numerous protestors standing in the street with their hands raised in the air. Also present at the location were numerous uniformed officers. At the 6 second mark of the video an officer (PO Sher), wearing a black ballistic helmet and blue surgical face mask, approached a male protestor [REDACTED], who wearing a black hat, multi-color book bag, black shirt, and jeans. [REDACTED] was standing at the location with both of his hands raised in the air. Upon approach, PO Sher grabbed [REDACTED]'s face mask with his right hand and then discharged OC spray with his left hand into [REDACTED]'s face. [REDACTED] wasn't arrested or summonsed in regards to this incident. During this investigation, PO Neamtu was identified as being present during the above incident. During his Department interview, PO Neamtu stated that he didn't utilize his OC Spray during the above incident, but did utilize it later in that day. PO Neamtu stated that he discharged his OC Spray into a crowd of protestors. A review of PO Neamtu's BWC footage captured objects being thrown at officers, which resulted in PO Neamtu discharging his OC Spray into a crowd of protestors, while the officers run through. This allegation will be closed as Information and Intelligence.					
2	Full Allegation Fail to Prepare Report - TRI Report	Classification Abuse of Dept Regulations	Allegation Index FTR-Fail to Take/Make Report	Allegation Date 08/17/2022	Finding 07 - Substantiated	Finding Date 09/07/2022
	Comments During his Department interview, PO Neamtu admitted that he failed to prepare a TRI Report to document that he discharged his OC Spray at a group of protestors on 05/30/20 at approximately 2000 hours, while in the vicinity of Erasmus High School. This allegation will be closed as Sub / LOI issued. It should be noted that Group# 42 requested charges and specifications for the above allegation; however, the DAO declined and issued a LOI. (DAO Serial# 2020-22963)					
3	Full Allegation Memobook Incomplete/Improper -	Classification Abuse of Dept Regulations	Allegation Index Administrative Integrity Issue	Allegation Date 08/17/2022	Finding 07 - Substantiated	Finding Date 09/07/2022
	Comments A review of PO Neamtu's activity log entries related to this incident disclosed that they were improper and not within Department guidelines. PO Neamtu failed to document that he discharged his OC Spray. This allegation will be closed as Sub/ LOI issued. It should be noted that Group# 42 requested charges and specifications for the above allegation; however, the DAO declined and issued a LOI. (DAO Serial# 2020-22963)					
4	Full Allegation Force - OC Spray	Classification Arrest Effectuated	Allegation Index O-Other	Allegation Date 08/17/2022	Finding 07 - Substantiated	Finding Date 09/07/2022
	Comments					

		This investigation disclosed that on 05/30/20 at approximately 2000 hours, while in the vicinity of Erasmus High School, PO Neamtu improperly discharged his OC spray on a passively resisting person. This allegation will be closed as Sub/ LOI issued. It should be noted that Group# 42 requested charges and specifications for the above allegation; however, the DAO declined and issued a LOI. (DAO Serial# 2020-22963)				
5	Full Allegation Fail to Notify - Supervisor	Classification Abuse of Dept Regulations	Allegation Index Fail to Make Notification	Allegation Date 08/17/2022	Finding 07 - Substantiated	Finding Date 09/07/2022
		Comments During his Department interview, PO Neamtu admitted that he failed to notify a supervisor that he discharged his OC Spray at a group of protestors on 05/30/20 at approximately 2000 hours, while in the vicinity of Erasmus High School. This allegation will be closed as Sub / LOI issued. It should be noted that Group# 42 requested charges and specifications for the above allegation; however, the DAO declined and issued a LOI. (DAO Serial# 2020-22963)				
6	Full Allegation Fail to Provide Medical Care -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 09/07/2022	Finding 12 - Unsubstantiated	Finding Date 09/07/2022
		Comments This investigation was unable to prove or disprove if any of the protestors sprayed by PO Neamtu were injured. Investigators from Group# 54 were unable to identify any protestors. Therefore, this allegation will be closed as Unsubstantiated.				
Name 961814 DIONNYS HERNANDEZ POM (070-070 PRECINCT)		Status UNIFORM MEMBER OF SERVICE		Sex MALE	Race	Dob
Allegations						
1	Full Allegation Use of Force - Level 2	Classification Arrest Effected	Allegation Index Force Investigation Notification	Allegation Date 08/17/2022	Finding 04 - Info. and Intelligence	Finding Date 09/07/2022
		Comments On 05/31/20, Lt. Haque, Group# 54 emailed the IAB Command Center a 14 second Twitter video, which captured numerous protestors standing in the street with their hands raised in the air. Also present at the location were numerous uniformed officers. At the 6 second mark of the video, an officer (PO Sher), wearing a black ballistic helmet and blue surgical face mask, approached a male protestor [REDACTED], who wearing a black hat, multi-color book bag, black shirt, and jeans. [REDACTED] was standing at the location with both of his hands raised in the air. Upon approach, PO Sher grabbed [REDACTED]'s face mask with his right hand and then discharged OC spray with his left hand into [REDACTED]'s face. [REDACTED] wasn't arrested or summonsed in regards to this incident. During this investigation, PO Hernandez was identified as a being present at the above incident. During his Department interview, PO Hernandez stated that he didn't utilize his OC spray at the above incident; however, he did use it later in the day. PO Hernandez explained that he discharged his OC Spray at a group of protestors to keep the crowd from moving towards him. A review of PO Hernandez' BWC disclosed that the incident, where his discharged his OC Spray, occurred at the intersection of Church Avenue and Bedford Avenue at approximately 2000 hours. There were a crowd of protestors with their hands up in the air in front of PO Hernandez. The crowd appeared to be beyond arms reach of PO Hernandez. Police action appeared to be taken to the right side of PO Hernandez and some people advanced forward toward PO Hernandez and where the Police action was being taken. PO Hernandez directed the crowd to get back and at that point discharged his OC Spray at the the crowd, which resulted in them briefly retreating before returning to their original position. Nobody appeared to be injured from the OC spray. This allegation will be closed as Information and Intelligence.				
2	Full Allegation Fail to Prepare Report - TRI Report	Classification Abuse of Dept Regulations	Allegation Index FTR-Fail to Take/Made Report	Allegation Date 08/17/2022	Finding 07 - Substantiated	Finding Date 09/07/2022
		Comments During his Department interview, PO Hernandez admitted that he failed to prepare a TRI Report to document that he discharged his OC Spray at a group of protestors on 05/30/20 at approximately 2000 hours, while in the vicinity of Church Avenue and Bedford Avenue. This allegation will be closed as Sub / LOI issued. It should be noted that Group# 42 requested charges and specifications for the above allegation; however, the DAO declined and issued a LOI. (DAO Serial# 2020-22508)				
3	Full Allegation Memobook Incomplete/Improper -	Classification Abuse of Dept Regulations	Allegation Index Administrative Integrity Issue	Allegation Date 08/17/2022	Finding 07 - Substantiated	Finding Date 09/07/2022

		Comments A review of PO Hernandez' activity log entries related to this incident disclosed that they were improper and not within Department guidelines. PO Hernandez failed to document that he discharged his OC Spray. This allegation will be closed as Sub/ LOI issued. It should be noted that Group# 42 requested charges and specifications for the above allegation; however, the DAO declined and issued a LOI. (DAO Serial# 2020-22508)				
4	Full Allegation Force - OC Spray	Classification Arrest Effectuated	Allegation Index O-Other	Allegation Date 08/17/2022	Finding 07 - Substantiated	Finding Date 09/07/2022
		Comments This investigation disclosed that on 05/30/20 at approximately 2000 hours, while in the vicinity of Church Avenue and Bedford Avenue, PO Hernandez improperly discharged his OC spray on a passively resisting person. This allegation will be closed as Sub/ LOI issued. It should be noted that Group# 42 requested charges and specifications for the above allegation; however, the DAO declined and issued a LOI. (DAO Serial# 2020-22508)				
5	Full Allegation Fail to Notify - Supervisor	Classification Abuse of Dept Regulations	Allegation Index Fail to Make Notification	Allegation Date 08/17/2022	Finding 07 - Substantiated	Finding Date 09/07/2022
		Comments During his Department interview, PO Hernandez admitted that he failed to notify a supervisor that he discharged his OC Spray at a group of protestors on 05/30/20 at approximately 2000 hours, while in the vicinity of Church Avenue and Bedford Avenue. This allegation will be closed as Sub / LOI issued. It should be noted that Group# 42 requested charges and specifications for the above allegation; however, the DAO declined and issued a LOI. (DAO Serial# 2020-22508)				
6	Full Allegation Fail to Provide Medical Care -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 09/07/2022	Finding 12 - Unsubstantiated	Finding Date 09/07/2022
		Comments This investigation was unable to prove or disprove if any of the protestors sprayed by PO Hernandez were injured. Investigators from Group# 54 were unable to identify any protestors. Therefore, this allegation will be closed as Unsubstantiated.				

ATTACHMENT

1	 <u>'Amended Request for Charges and Specifications - PO Sher'</u>
2	 <u>'CCRB Report 202003703'</u>
3	 <u>'Charges and Specifications Preferred for PO Sher'</u>
4	 <u>'Charges and Specifications for PO Sher'</u>
5	 <u>'Closing Report - PW Case 2020-4'</u>
6	 <u>'DAO Issuance of Instructions to PO Hernandez'</u>

7	 <u>'DAO Issuance of Instructions to PO Neamtu'</u>
8	 <u>'Letter to [REDACTED]'</u>
9	 <u>'Modification of PO Sher November 2021'</u>
10	 <u>'Notification of Disposition - PO Hernandez'</u>
11	 <u>'Notification of Disposition - PO Neamtu'</u>
12	 <u>'Notification of Disposition - PO Sher'</u>
13	 <u>'Request for Charges and Specifications - PO Sher'</u>
14	 <u>'Request for Charges and Specifications - PO Neamtu'</u>
15	 <u>'Request for Charges and Specifications - PO Hernandez'</u>
16	 <u>'Suspension of PO Sher'</u>

Reporting Officer:	Rank LT	Name BURKE CHARLES		Tax Reg. No. 936263		Command G54-GROUP 54 - FORCE
Reviewing Supervisor:	Manner of Closing C - PARTIALLY SUBSTANTIATED	Date Reviewed 10/27/2022	Date of Next Review	Name WALSH JOHN		Supv. Tax No. 882216
Endorser:	Rank DI	Name PROFETA JOSEPH	Tax Reg. No. 924360	Command G54-GROUP 54 - FORCE	DateTime Reviewed 09/12/2022 13:48	Status Approved
	Comments THIS CASE WAS ORIGINALLY ASSIGNED TO SGT. CHUYKO, BUT REASSIGNED TO DT3 RETOS ON 07/13/21, AFTER SGT. CHUYKO WAS TRANSFERRED OUT OF IAB TO DB. NO TLCR FOR 12/2021 W/S 18: IMPROPER TAPE HEADING W/S 33: INCOMPLETE WORKSHEET					

NOTE: A REVIEW OF CCRB CASE# 202003703 DISCLOSED THAT THEY HAVE NUMEROUS OFFICERS LISTED AS WITNESS OFFICERS. THESE OFFICERS WERE ADDED TO THE CCRB CASE BECAUSE THEY WORKED ON THE DATE OF THE INCIDENT IN THE VICINITY OF THE INCIDENT LOCATION. IT WASN'T NECESSARY TO ADD ALL OF THESE OFFICERS AS WITNESSES IN OUR CASE.

W/S 109: EACH REPORT SHOULD HAVE BEEN A SEPARATE ATTACHMENT.

THIS CASE WAS NEVER CLASSIFIED. ALL FI CASES SHOULD BE CLASSIFIED WITHIN 30 DAYS.

W/S 69 (DEPARTMENT RADIO) AND W/S 71 (INTEL# 681) WERE PLACED INTO THIS CASE IN ERROR. THEY DIDN'T BELONG TO THIS CASE.

DUE TO THE FACT THAT PO HERNANDEZ AND PO NEAMTU WERE ALREADY INTERVIEWED AND ISSUED DISCIPLINE BY GROUP# 42, ITS NOT NECESSARY AT THIS TIME TO CONDUCT AN INTEL INQUIRY ON THESE OFFICERS.

DUE TO THE FACT THAT NONE OF THE PROTESTORS WERE IDENTIFIED OR MADE A COMPLAINT AGAINST PO NEAMTU, PO HERNANDEZ, OR THE UNIDENTIFIED OFFICER IN THIS CASE, A CCRB ALLEGATION FOR FAIL TO PROVIDE MEDICAL ATTENTION WILL NOT BE ADDED.

Endorser:	Rank INS	Name RICCIARDI MICHAEL	Tax Reg. No. 902273	Command Z03-ZONE 3	DateTime Reviewed 09/14/2022 13:59	Status Rejected
	Comments SEE ZONE 3 REVIEW					
Endorser:	Rank DI	Name PROFETA JOSEPH	Tax Reg. No. 924360	Command G54-GROUP 54 - FORCE	DateTime Reviewed 09/23/2022 00:52	Status Approved
	Comments APPROVED					
Endorser:	Rank INS	Name RICCIARDI MICHAEL	Tax Reg. No. 902273	Command Z03-ZONE 3	DateTime Reviewed 09/23/2022 11:04	Status Rejected
	Comments SEE ZONE 3 REVIEW					
Endorser:	Rank LT	Name BURKE CHARLES	Tax Reg. No. 936263	Command G54-GROUP 54 - FORCE	DateTime Reviewed 09/26/2022 14:46	Status Approved
	Comments APPROVED.					
Endorser:	Rank DI	Name PROFETA JOSEPH	Tax Reg. No. 924360	Command G54-GROUP 54 - FORCE	DateTime Reviewed 09/26/2022 14:47	Status Approved
	Comments APPROVED					
Endorser:	Rank INS	Name RICCIARDI MICHAEL	Tax Reg. No. 902273	Command Z03-ZONE 3	DateTime Reviewed 09/27/2022 11:26	Status Approved
	Comments RECOMMEND CASE CLOSED AS PART SUB					
Endorser:	Rank DC	Name WALSH JOHN	Tax Reg. No. 882216	Command CRI-CRIMINAL INVESTIGATIONS	DateTime Reviewed 10/27/2022 17:11	Status Approved
	Comments					

APPROVED